

HOUSE BILL 1161

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 5,
relative to county powers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) A county may, by the adoption of a resolution by a two-thirds (2/3) vote of the county legislative body, impose a moratorium on the development of property, including property within the boundaries of a municipality, for apartment complexes. The moratorium must be limited to one (1) year in duration, but may be extended for additional years, not to exceed one (1) year per extension, by the passage of a resolution by a two-thirds (2/3) vote of the county legislative body.

(b) A person with vested property rights under § 13-3-413 or § 13-4-310 is not subject to a moratorium imposed under subsection (a).

(c) This section applies in a county having a population of not less than three hundred twenty-five thousand (325,000), according to the 2020 or a subsequent federal census.

(d) This section does not apply to a county having a metropolitan form of government.

(e) As used in this section, "apartment complex" means a building or group of buildings for multi-family use within the same development containing twenty-five (25) or more individual dwelling units for residents.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.